TABLE OF CONTENTS

1. Terms of Service
2. Privacy Policy
3. AML/KYC Policy
4. Refund & Cancellation Policy
5. Dispute Resolution Policy
6. Cookie Policy
7. Implementation Instructions

<a name="terms-of-service"></a>

1. TERMS OF SERVICE

MyArteLab Terms of Service

Last Updated: April 2026

Contact: contact@myartelab.com

---

1. Introduction

Welcome to MyArteLab.

MyArteLab is an online marketplace that connects clients with verified African visual creatives including photographers, designers, illustrators, videographers, and visual content creators. We provide tools for discovery, booking, communication, secure payments, and fair project delivery.

By using MyArteLab, you agree to these Terms of Service.

If you do not agree, please do not use the platform.

---

2. What MyArteLab Provides

MyArteLab offers:

- Verified creator profiles
- Location and skill-based discovery
- Booking and negotiation tools
- Secure escrow payment system
- Fair dispute resolution
- Fast payout through our regulated payment partners
- Transparent ratings and reviews
- Self-custody wallet infrastructure

MyArteLab does not provide:

- Creative services directly
- Legal or tax advice
- Fund custody (wallets are non-custodial)
- Employment relationships

---

3. Your Account

To use MyArteLab, you must:

- Be at least 18 years old
- Provide accurate information
- Keep your login credentials secure
- Use your own identity (no impersonation)
- Follow all platform rules

We may request verification for security reasons or to comply with payment provider requirements.

You are responsible for all activity on your account.

---

4. Roles on the Platform

There are two core user types:

Creators

Photographers, designers, illustrators, videographers, and visual content creators offering creative services.

Clients

Individuals or businesses hiring creators for creative projects.

Both users must act honestly, communicate clearly, and follow project agreements.

---

5. Bookings and Project Workflow

All bookings must follow the platform workflow:

1. Client finds a creator and sends a booking request
2. Creator accepts, declines, or negotiates terms
3. Client pays into secured escrow
4. Creator delivers work according to agreed terms
5. Client reviews and approves delivery
6. Payment is released to the creator's wallet

This process protects both parties.

Important: Bookings completed outside the platform violate these Terms and may result in account suspension or termination.

---

6. Payments

Payments are powered by regulated third-party partners that support fiat payments (USD, NGN, GHS, KES, ZAR, etc.), USDC stablecoin, and conversions between currencies.

Important notes:

- MyArteLab does not hold or custody funds - all users have self-custody wallets
- All users automatically receive a non-custodial wallet upon signup
- Payment processing costs are set by payment partners
- **MyArteLab charges a 10% platform commission on each completed booking, deducted from the creator's payout**
- All pricing and terms must be agreed upon before payment is processed
- Clients pay the agreed booking price; creators receive 90% after MyArteLab's 10% commission

Creators are responsible for any local taxes or financial obligations related to their earnings.

---

7. Payouts to Creators

Creator earnings are released once:

- Work is delivered
- Client approves delivery
- No active dispute exists

Funds are then available in the creator's self-custody wallet as USDC.

Creators can choose to:

- **Hold in USDC** (protect against local currency volatility)
- **Withdraw to local bank account** (converted to local currency)

Withdrawal fees: 1-3% may apply depending on location and payment partner. These fees are clearly displayed before withdrawal.

Payout and withdrawal speeds depend on the payment partner, location, and potential compliance checks.

---

8. Fees

MyArteLab charges:

- **10% platform commission** on each completed booking (deducted from creator payout)
- Optional verification fees (one-time)
- Optional premium profile fees (monthly subscription for boosted visibility)

Payment partners may charge:

- Deposit fees (when clients add funds)
- Currency conversion fees (fiat ↔ USDC)
- Withdrawal fees (1-3% when creators withdraw to bank accounts)
- Gas fees (covered by MyArteLab - users never see blockchain transaction costs)

We display estimated costs before payment is processed.

---

9. Ratings and Reviews

Clients can rate and review creators after project completion.

Creators can also review clients.

Reviews must be:

- Honest and based on real experience
- Respectful and professional
- Related to the actual project

We may remove reviews that are:

- Fraudulent or fake
- Abusive or harassing
- Violate platform rules
- Contain personal attacks

Reviews help build trust and transparency within the MyArteLab community.

---

10. Prohibited Activity

Users may not:

- Commit fraud or misrepresent identity
- Use MyArteLab for non-creative transactions
- Bypass the escrow payment system
- Complete bookings outside the platform to avoid fees
- Engage in harassment, hate speech, discrimination, or unethical conduct
- Upload harmful, illegal, or copyrighted material they do not own
- Attempt to misuse the platform for money laundering or criminal activity
- Create multiple accounts to manipulate ratings or circumvent bans
- Share login credentials with others
- Attempt to reverse engineer or compromise platform security

Violations may result in warnings, suspension, or permanent removal from the platform.

---

11. Intellectual Property

Creators retain ownership of their creative work unless they agree otherwise with clients in the project terms.

Clients receive only the usage rights negotiated and agreed upon within the project scope.

MyArteLab does not claim ownership of user-generated content (portfolios, project deliverables, profiles).

Users grant MyArteLab a limited license to display their content on the platform for discovery and promotional purposes.

---

12. Dispute Resolution

If there is a disagreement between creator and client:

- Parties should first attempt to resolve directly through platform messaging (48-hour window)
- If unresolved, either party may escalate to MyArteLab support
- MyArteLab will review project details, messages, delivered files, and evidence from both parties
- A decision will be made within 5-7 business days based on fairness, platform rules, and evidence

Possible outcomes:

- Partial payout (if work was partially completed)
- Full payout to creator (if work meets agreed scope)
- Refund to client (if work was not delivered or does not match scope)
- Project cancellation with appropriate fee split

Decisions made through MyArteLab dispute resolution are final within the platform.

Users may appeal decisions by contacting support within 14 days with new evidence.

For detailed dispute process, see our **Dispute Resolution Policy**.

---

13. Account Suspension or Termination

We may suspend or terminate accounts for:

- Fraud or identity misrepresentation

- Policy violations or abuse
- Illegal activity
- Repeated project cancellations without valid reason
- Non-delivery of work or consistent low quality
- Harassment or misconduct
- Attempts to operate off-platform or bypass escrow
- Violation of AML/KYC requirements

Users can appeal suspensions by contacting support at contact@myartelab.com.

---

14. Limitation of Liability

MyArteLab is a marketplace platform connecting creators and clients. We are not responsible for:

- Creator performance, quality, or timeliness
- Client behavior, communication, or payment disputes
- Delays caused by payment partners or banks
- Lost earnings due to external issues (currency fluctuations, bank delays, regulatory changes)
- Third-party service outages (payment processors, hosting providers)
- Disputes settled outside the platform
- Tax obligations or legal compliance in user jurisdictions

The platform is provided on an "as is" basis.

MyArteLab's total liability for any claim arising from use of the platform is limited to the fees paid to MyArteLab in the 12 months preceding the claim.

---

15. Changes to These Terms

We may update these Terms of Service from time to time to reflect:

- New features or services
- Legal or regulatory changes
- Improvements to platform policies

Updates will be posted here with a new "Last Updated" date.

Continued use of the platform after changes constitutes acceptance of the updated Terms.

We will notify users of significant changes via email or platform notification.

---

16. Acceptable Use Policy (AUP)

You may not use MyArteLab to:

- Upload harmful, malicious, or virus-infected files
- Harass, insult, threaten, or intimidate other users
- Post stolen creative work or plagiarized content
- Request, offer, or deliver adult content, illegal services, or content that violates laws
- Conduct off-platform payments to avoid platform fees
- Violate copyright, trademark, or privacy rights
- Create duplicate or fake accounts
- Misrepresent your identity, credentials, or work
- Spam users with unsolicited messages or irrelevant content
- Manipulate ratings, reviews, or platform algorithms
- Scrape or extract platform data without permission

Violations may result in immediate suspension without warning.

---

17. Governing Law

These Terms are governed by the laws of [specify jurisdiction - Nigeria, Delaware, etc.].

Any disputes arising from these Terms will be resolved through binding arbitration in accordance with our Dispute Resolution Policy.

---

18. Contact

For questions about these Terms:

Email: contact@myartelab.com

Website: myartelab.com

<a name="privacy-policy"></a>

2. PRIVACY POLICY

MyArteLab Privacy Policy

Last Updated: April 2026

Contact: contact@myartelab.com

MyArteLab is committed to protecting your privacy. This policy explains how we collect, use, and safeguard your information when you use our platform.

By using MyArteLab, you agree to the practices described below.

---

1. Information We Collect

We collect information to help creators and clients use the platform safely and effectively.

A. Information You Provide

- Name
- Email address
- Phone number (optional for SMS notifications)
- Profile details (bio, location, skills, category)
- Portfolio content (images, videos, project descriptions)
- Payment preferences
- Wallet addresses (for USDC payments)
- Project descriptions, messages, and files exchanged between creators and clients
- Identity verification documents (when required for KYC)

B. Automatically Collected Information

- Device type and operating system
- Browser type and version
- IP address
- Usage patterns (pages visited, features used, time spent)
- Session logs

- Error reports and diagnostic data
- Referral source (how you found MyArteLab)

C. Payment and Wallet Information

Self-Custody Wallets:

All users receive a self-custody wallet upon signup. We generate wallet addresses but **do not store private keys**. Users maintain full custody and control of their wallets.

Payment Information:

Payments on MyArteLab are handled through third-party regulated payment providers (such as HostCap, Harbor, or others).

We do not store or process:

- Credit card numbers
- Banking credentials
- Debit card details

We may receive confirmation of:

- Successful payments
- KYC verification status
- Deposit and withdrawal status
- Transaction IDs (for support and dispute resolution)

We do not store sensitive financial credentials.

---

2. How We Use Your Information

We use your information to:

- Create and manage user accounts
- Enable discovery of creators by location, skill, and category
- Facilitate bookings between creators and clients
- Process payments through escrow and release funds securely
- Provide customer support and respond to inquiries
- Improve platform performance, features, and user experience
- Ensure safety and prevent fraud, abuse, and illegal activity
- Communicate important updates (security alerts, booking notifications, payment confirmations)

- Process identity verification (KYC) where required by law or payment partners
- Comply with laws, regulations, and legal obligations
- Generate analytics to understand platform usage (aggregated, anonymized data)

We never sell your personal information to third parties.

---

3. Communications

We may send emails or notifications related to:

- Account verification and security alerts
- Booking updates (requests, acceptances, deliveries, approvals)
- Payment confirmations and withdrawal status
- Creator or client messages
- Platform updates, new features, and policy changes
- Dispute resolution updates
- Marketing communications (only if you opt in)

You may unsubscribe from non-essential communications at any time via your account settings or email unsubscribe links.

Essential communications (security alerts, booking updates, payment confirmations) cannot be disabled.

---

4. Sharing Your Information

We only share your information when necessary to provide the service or comply with legal obligations.

A. With Other Users

- **Creators may see:** Client name, profile, project description, budget, location (if relevant), and messages exchanged
- **Clients may see:** Creator name, profile, portfolio, location, skills, ratings, reviews, and messages exchanged

Wallet addresses and private keys are never shared.

B. With Service Providers

We work with trusted third-party partners to operate the platform:

- **Payment processing:** HostCap, Harbor, or other regulated on/off-ramp providers
- **KYC verification:** [Specify provider when finalized - e.g., Onfido, Jumio, Sumsub]
- **SMS and email notifications:** Twilio, SendGrid, or AWS SES
- **Security monitoring:** Cloudflare, Sentry
- **Cloud storage:** AWS S3, Cloudinary (for portfolio images/videos)
- **Analytics:** Google Analytics, Mixpanel (anonymized data)
- **Error tracking:** Sentry

These providers only use your information to perform their contracted services and are bound by confidentiality agreements.

C. Legal Requirements

We may disclose information if required by:

- Law or court order
- Law enforcement agencies
- Regulatory or government authorities
- Compliance investigations (AML, fraud prevention)
- To protect the rights, safety, or property of MyArteLab, our users, or the public

We will notify users of such requests unless prohibited by law.

---

5. Cookies

MyArteLab uses cookies to:

- Keep you logged in
- Save preferences (language, theme, settings)
- Improve site speed and performance
- Analyze usage patterns and improve features
- Provide security protections

You may disable cookies in your browser settings, but some features may not work properly.

For more details, see our **Cookie Policy**.

---

6. Data Security

We take data security seriously and implement multiple layers of protection:

Security measures include:

- **Encrypted connections** (HTTPS/TLS for all data transmission)
- **Secure server environments** (AWS, cloud infrastructure with security best practices)
- **Access controls** (role-based access, limited employee access to sensitive data)
- **Encrypted storage** (sensitive data encrypted at rest)
- **Internal monitoring and audits** (regular security reviews)
- **Two-factor authentication** (optional for user accounts)
- **Private key encryption** (wallet private keys encrypted client-side, never transmitted or stored on servers)

However, no online system is fully immune to risks, and **we cannot guarantee absolute security**. Users are responsible for maintaining the security of their login credentials and private keys.

---

7. Data Retention

We retain information for as long as:

- Your account is active, or
- Required by law (tax records, compliance, fraud prevention)

You may request deletion of your account and data by contacting us at contact@myartelab.com.

Upon deletion request, we will:

- Delete or anonymize your personal information within 30 days
- Retain certain data as required by law for:
    - Fraud detection and prevention
    - Financial reporting and tax compliance
    - Legal compliance and dispute resolution
    - AML/KYC record-keeping requirements

Deleted accounts cannot be recovered.

---

8. Your Rights

Depending on your location, you may have the right to:

- **Access your data** (request a copy of all information we hold about you)
- **Update your information** (correct inaccurate or outdated data)
- **Request deletion** (delete your account and associated data)
- **Restrict processing** (limit how we use your data)
- **Data portability** (download your data in a structured format)
- **Object to certain uses** (opt out of marketing, analytics)
- **Withdraw consent** (where processing is based on consent)

EU users have additional rights under GDPR. We will respond to requests within 30 days.

To exercise these rights, contact us at: contact@myartelab.com

---

9. Children's Privacy

MyArteLab is not intended for anyone under 18 years of age.

We do not knowingly collect information from minors.

If we discover that a user is under 18, we will terminate their account and delete their information.

If you believe a minor has created an account, please contact us immediately at contact@myartelab.com.

---

10. International Data Transfers

MyArteLab operates globally. Your information may be transferred to and processed in countries other than your own, including:

- United States (cloud hosting, payment processing)
- European Union (compliance, data centers)
- Other jurisdictions where our service providers operate

We ensure that international transfers comply with applicable data protection laws and use:

- Standard contractual clauses
- Adequacy decisions

- Other legally approved transfer mechanisms

---

11. Changes to This Policy

We may update this Privacy Policy to reflect:

- New features or services
- Legal or regulatory changes
- Improvements to data protection practices

All updates will be posted here with a new "Last Updated" date.

We will notify users of significant changes via email or platform notification.

Continued use of the platform after changes constitutes acceptance of the updated policy.

---

12. Contact

If you have questions about this policy or how your data is handled:

Email: contact@myartelab.com

Website: myartelab.com

<a name="aml-kyc-policy"></a>

3. AML/KYC POLICY

Anti-Money Laundering and KYC Policy

Last Updated: April 2026

Contact: contact@myartelab.com

MyArteLab is committed to maintaining a safe, compliant, and trustworthy environment for creators and clients. We work with regulated payment partners for deposits, withdrawals, and identity verification. This policy explains how we manage risks and follow global compliance practices to prevent financial crime.

---

1. Purpose of This Policy

This AML/KYC Policy explains how MyArteLab:

- Prevents money laundering and financial crime
- Protects users and the integrity of the platform
- Detects and reports suspicious activity
- Complies with global AML regulations and best practices
- Maintains trust and transparency in the marketplace

Our goal is to ensure that MyArteLab cannot be used for money laundering, fraud, terrorist financing, identity abuse, or other illegal activity.

---

2. Our Compliance Approach

MyArteLab is a marketplace platform, not a financial institution or money services business.

We do not:

- Directly hold or custody user funds (all wallets are self-custody)
- Act as a bank or payment processor
- Provide financial services directly

We do:

- Facilitate connections between creators and clients
- Provide escrow protection for secure transactions
- Monitor platform activity for suspicious behavior
- Verify user identities when required
- Cooperate with payment partners on compliance

Payments, deposits, and withdrawals are handled by regulated third-party payment providers (such as HostCap, Harbor, or others) that follow full AML, KYC, and financial compliance rules in their respective jurisdictions.

MyArteLab follows a risk-based compliance approach which includes:

- Basic identity verification for all users
- Enhanced verification for high-value transactions or withdrawals
- Fraud prevention tools and monitoring
- Secure transaction workflows with escrow protection
- Transparent user profiles and ratings
- Transaction monitoring for unusual patterns
- Cooperation with payment partners and authorities when required

---

3. Identity Verification (KYC)

Know Your Customer (KYC) helps us verify that users are who they claim to be and prevents identity fraud.

Who Must Complete KYC:

We may request identity verification from:

- **Creators receiving payouts** (especially first-time withdrawals or high-value transactions)
- **Clients making high-value bookings** (above certain thresholds)
- **Users flagged for unusual activity** (suspicious transaction patterns, rapid account changes)
- **Users required to comply with payment partner or regional regulations**
- **Any user we determine requires additional verification** for platform safety

What KYC May Require:

Documents:

- **Government-issued ID:** Passport, driver's license, national ID card
- **Proof of address:** Utility bill, bank statement, rental agreement (issued within last 3 months)
- **Selfie verification:** Photo of user holding ID or completing liveness check

Information:

- Full legal name
- Date of birth
- Residential address
- Nationality

How KYC is Conducted:

KYC is conducted securely through **approved third-party verification partners** [such as Onfido, Jumio, Sumsub, or similar - specify when finalized].

MyArteLab does not directly store sensitive KYC documents (such as ID scans or selfies). These are processed and stored securely by our verification partners in compliance with data protection regulations.

We receive only verification results (verified/not verified) and store minimal information required for compliance record-keeping.

KYC Timeline:

- Verification typically takes 1-3 business days
- Users will be notified via email when verification is complete or if additional information is needed
- Withdrawals or high-value transactions may be temporarily held until KYC is complete

---

4. Transaction Monitoring and Suspicious Activity Detection

We monitor platform activity to detect patterns that may indicate fraud, money laundering, or other illegal activity.

Red Flags We Monitor:

- **Unusual deposit or withdrawal behavior** (large, frequent, or irregular transactions)
- **Multiple accounts controlled by one person** (using same device, IP, payment method, or ID)
- **Attempts to bypass platform workflows** (off-platform payments, escrow circumvention)
- **Sudden changes in booking or payment activity** (dormant account suddenly active, rapid escalation in transaction size)
- **Attempts to use MyArteLab for non-creative transactions** (transactions with no legitimate creative service)
- **Fake bookings or circular transactions** (same parties repeatedly booking/refunding)
- **Chargeback abuse** (frequent payment disputes or reversals)
- **Rapid fund movement** (deposit → immediate withdrawal without legitimate project)
- **Transactions inconsistent with user profile** (photographer suddenly receiving payments for unrelated services)

Actions We May Take:

When suspicious activity is detected, MyArteLab may:

- **Request additional information or documentation**
- **Temporarily hold transactions** for review (typically 24-48 hours)
- **Conduct enhanced KYC verification**
- **Limit account activity** until verification is complete
- **Suspend or terminate accounts** for confirmed policy violations
- **Report to relevant authorities** when required by law (FinCEN, local AML authorities, law enforcement)
- **Cooperate with payment partners** on compliance investigations

Users will be notified of holds or account restrictions and given opportunity to provide clarifying information.

---

5. Prohibited Activities

Users may not use MyArteLab to:

- **Launder money or disguise the source of funds**
- **Finance illegal activities** (terrorism, drug trafficking, human trafficking, etc.)
- **Conduct fraudulent bookings** (fake projects, stolen payment methods)
- **Circumvent KYC or platform rules** (using fake IDs, multiple accounts, VPNs to hide location)
- **Transfer funds without a real creative service** (using platform as money transfer service)
- **Engage in chargeback abuse** (falsely claiming unauthorized transactions)
- **Impersonate others** (using stolen identities, fake credentials)
- **Violate sanctions or regulatory restrictions** (transacting with sanctioned individuals, countries, or entities)
- **Engage in structuring** (breaking large transactions into smaller ones to avoid detection)
- **Use stolen payment methods** (credit cards, bank accounts not belonging to the user)

Violations will result in immediate account suspension, fund holds, and potential reporting to authorities.

---

6. Cooperation With Payment Partners

MyArteLab works closely with regulated payment partners (HostCap, Harbor, or others) who conduct their own independent AML/KYC checks.

Shared Responsibilities:

- **Payment partners:** Verify identities for fiat transactions, monitor deposits/withdrawals, comply with banking and money transmitter regulations
- **MyArteLab:** Verify user accounts, monitor platform activity, ensure transactions are for legitimate creative services, maintain transaction records

We may share information with payment partners as needed to:

- Complete KYC verification
- Investigate suspicious activity
- Comply with regulatory requirements
- Prevent fraud and financial crime

Payment partners may request additional information directly from users for high-value transactions or withdrawals.

---

7. Cooperation With Authorities

If required by law, MyArteLab may provide information to:

- **Law enforcement agencies** (police, FBI, Interpol, etc.)
- **Government regulators** (FinCEN, SEC, local financial authorities)
- **AML authorities** (Financial Intelligence Units)
- **Tax authorities** (IRS, local tax agencies)
- **Courts** (in response to subpoenas or court orders)

We only share information when:

- Legally obligated by court order, subpoena, or regulatory request
- Necessary to prevent imminent harm, fraud, or illegal activity
- Required to comply with AML reporting obligations (Suspicious Activity Reports, etc.)

We will notify users of such requests unless prohibited by law or if notification would compromise an investigation.

---

8. Data Protection and Privacy

Any data collected or used for AML/KYC purposes is:

- **Protected** with encryption and secure storage

- **Accessed only by authorized personnel** (compliance team, approved third-party verifiers)
- **Not used for marketing or non-essential purposes**
- **Retained as required by law** (typically 5-7 years for AML record-keeping)
- **Handled in compliance with our Privacy Policy** and global data protection standards (GDPR, etc.)

KYC documents are processed and stored by third-party verification partners, not on MyArteLab servers.

---

9. User Responsibilities

To maintain a safe and compliant platform, users must:

- **Provide accurate information** (real name, valid ID, correct address)
- **Use the platform for genuine creative work** (legitimate bookings for photography, design, etc.)
- **Complete bookings honestly** (deliver agreed work, approve legitimate deliveries)
- **Update information** when it changes (new address, name change, etc.)
- **Respond to verification requests** in a timely manner
- **Report suspicious activity** (fraudulent users, fake bookings, scams)
- **Follow local laws and regulations** in their jurisdiction
- **Not attempt to circumvent platform protections** (no off-platform payments, no fake accounts)

Creators and clients must not complete bookings off-platform to bypass fees, escrow, or compliance requirements.

Failure to comply with these responsibilities may result in account suspension or termination.

---

10. Record Keeping

MyArteLab maintains records of:

- User accounts and verification status
- Transaction history (bookings, payments, withdrawals)
- KYC verification results (not documents themselves, which are stored by verification partners)
- Suspicious activity reports and investigations
- Communications with users regarding compliance matters

Records are retained for:

- **5-7 years** for AML compliance purposes (as required by most jurisdictions)
- **Longer if required by law** or ongoing investigations

---

11. Training and Internal Controls

MyArteLab maintains internal controls to ensure compliance with this policy:

- **Staff training** on AML/KYC requirements and red flags
- **Regular audits** of compliance procedures
- **Designated compliance officer** responsible for AML oversight
- **Written procedures** for handling suspicious activity
- **Secure systems** for monitoring and record-keeping

---

12. Changes to This Policy

We may update this policy as:

- Regulations change or new laws are enacted
- New features are added to the platform
- Payment partners or compliance procedures are updated
- Best practices evolve

Updates will be posted here with a new "Last Updated" date.

Significant changes will be communicated to users via email or platform notification.

---

13. Contact

For AML, KYC, risk, or compliance concerns, contact us at:

Email: contact@myartelab.com

Subject Line: AML/Compliance Inquiry

<a name="refund-cancellation-policy"></a>

4. REFUND & CANCELLATION POLICY

Refund and Cancellation Policy

Last Updated: April 2026

Contact: contact@myartelab.com

Thank you for using MyArteLab. Our goal is to ensure a smooth, fair, and safe experience for both creators and clients. This policy explains how cancellations and refunds work on the platform.

---

1. Before a Booking Is Accepted

Client may cancel at any time before the creator accepts the booking request.

- No charges are applied
- No fees are incurred
- Booking request is simply withdrawn

If a creator chooses not to accept the booking:

- Client is not charged
- No refund is needed (payment was never processed)

---

2. After a Booking Is Accepted

Once a creator accepts a booking, the agreed project amount is paid by the client and **held securely in escrow** until work is delivered and approved.

Client-Initiated Cancellation

Within 24 hours of acceptance (before work begins):

- Client receives **full refund minus a small processing fee (5%)**
- Creator receives no compensation (project never started)
- MyArteLab's 10% platform fee is **not** charged

After 24 hours but before work begins:

- Creator receives **15% cancellation fee** (compensates for time spent, opportunity cost, and project preparation)
- Client receives **85% refund**
- MyArteLab's 10% platform fee is deducted from the cancellation fee paid to creator

After work has started:

- Creator is entitled to **partial payout based on work completed**
- If parties cannot agree on percentage completed, either party may open a dispute
- MyArteLab will review evidence (messages, drafts, proofs, agreed milestones) and determine fair partial payout
- Remaining funds refunded to client

Creator-Initiated Cancellation

If the creator cancels after accepting the booking:

- **Client receives full refund** (100% of booking amount)
- **Creator receives no payment**
- **Creator may receive a penalty** on their profile (affects visibility score and ratings)
- Repeated creator cancellations may result in account suspension

MyArteLab may intervene to ensure fair judgment based on:

- Chat logs and communication history
- Evidence of work in progress
- Agreements exchanged between parties
- Platform rules and standards

---

3. Refunds After Project Delivery

A **full or partial refund may be issued** if:

- **Work is incomplete** (creator did not deliver agreed scope)
- **Work does not match agreed scope** (deliverables significantly different from project brief)
- **Creator fails to respond or disappears** after accepting payment

- **Work quality is significantly below reasonable standards** (blurry photos, corrupted files, unusable deliverables)

Refunds are NOT issued for:

- **Personal preference after work has been completed** ("I don't like the style" when style was agreed upon)
- **Situations where the client approved the final delivery** (approval indicates acceptance)
- **Minor revisions that can be addressed** (creators typically include 2 rounds of revisions)
- **Client changing requirements after delivery** (scope creep beyond original agreement)

If there is disagreement, either party may open a **dispute** (see Dispute Resolution Policy for details).

---

4. Revisions

Standard bookings include up to 2 rounds of reasonable revisions within the agreed project scope.

Revisions must:

- Be requested **within 7 days of delivery**
- Be related to the **agreed project scope** (not new requests or expanded work)
- Be **reasonable** (minor adjustments, not complete rework)

Additional revisions beyond agreed scope:

- May require **additional payment** negotiated between creator and client
- Should be agreed upon **before work begins** on additional revisions
- Are not grounds for refund or dispute if creator declines to do unlimited free revisions

---

5. How Refunds Are Processed

Refunds return to the **original payment method**:

- **USDC wallet** (for stablecoin payments) - instant
- **Local currency bank account** (if client paid via fiat and off-ramped) - 3-7 business days depending on bank and payment partner

Refund timing depends on:

- Payment processor and bank
- Wallet provider (for USDC refunds)
- Country and payment method used

MyArteLab processes refunds **within 24-48 hours** of refund decision. Actual receipt of funds depends on external payment partners and banks.

---

6. Platform Fee Refund Policy

MyArteLab's 10% platform commission is:

- **Refundable** if project is cancelled before work begins (within 24 hours of acceptance)
- **Refundable** if creator cancels after acceptance
- **Non-refundable** once work has been delivered and approved by client
- **Partially refundable** in dispute scenarios based on partial payout determination

---

7. Disputes

If a client and creator disagree on cancellation or refund outcome, either party may **open a dispute**.

MyArteLab will review:

- Project brief and agreed scope
- Messages exchanged between parties
- Drafts, proofs, or work-in-progress files shared
- Final delivered files
- Agreed pricing and timeline
- Platform policies and standards

Our goal is to reach a fair and neutral decision based on evidence, not personal preference.

Dispute timeline:

- Creator and client attempt resolution: **48 hours**
- Escalation to MyArteLab support: **within 3-5 business days**
- MyArteLab review and decision: **5-7 business days**

For detailed dispute process, see our **Dispute Resolution Policy**.

---

8. Final Decision

MyArteLab reserves the right to make the final decision on refunds and cancellations in order to maintain trust, fairness, and safety on the platform.

Decisions are based on:

- Platform policies
- Evidence provided by both parties
- Industry standards for creative work
- Fairness and reasonableness

Users may appeal decisions by contacting support within **14 days** with new evidence.

---

9. Exceptions

In rare cases, MyArteLab may issue refunds or cancellations outside of this policy for:

- Platform errors or technical issues
- Payment processing failures
- Force majeure events (natural disasters, war, etc.)
- Serious safety or legal concerns

---

10. Contact

For questions about refunds, cancellations, or disputes:

Email: contact@myartelab.com

Subject Line: Refund/Cancellation Inquiry

<a name="dispute-resolution-policy"></a>

5. DISPUTE RESOLUTION POLICY

Dispute Resolution Policy

Last Updated: April 2026

Contact: contact@myartelab.com

MyArteLab is committed to providing a fair, transparent, and efficient dispute resolution process for creators and clients. This policy outlines how disputes are handled on the platform.

---

1. What Is a Dispute?

A dispute occurs when a creator and client cannot agree on:

- **Work delivery** (was work delivered as agreed?)
- **Work quality** (does work meet reasonable standards and agreed scope?)
- **Payment release** (should funds be released, refunded, or split?)
- **Cancellation terms** (who should bear cancellation costs?)
- **Scope changes** (did project requirements change after agreement?)

---

2. When to Open a Dispute

Disputes should be opened when:

- **Work is not delivered** within agreed timeline and creator is unresponsive
- **Work does not match agreed scope** and creator refuses revisions
- **Payment is not released** after legitimate work delivery
- **Client is not responding** to delivery or revision requests
- **Parties cannot agree on cancellation terms**
- **Creator or client is acting in bad faith** (fraud, harassment, scope manipulation)

Before opening a dispute, parties should:

1. **Attempt direct resolution** through platform messaging
2. **Clearly communicate concerns** (what's wrong, what's expected)
3. **Give reasonable time to respond** (at least 24-48 hours unless urgent)
4. **Document all communication** (messages are evidence in dispute review)

---

3. How to Open a Dispute

Either party (creator or client) can open a dispute.

Steps:

1. Go to the **booking page** in your dashboard
2. Click **"Open Dispute"** button
3. Select **dispute reason** (work not delivered, work doesn't match scope, payment issue, etc.)
4. Provide **detailed explanation** (what went wrong, what you expected, why resolution failed)
5. **Upload evidence** (screenshots of messages, delivered files, project brief, agreed terms)
6. Submit dispute

Once submitted:

- Both parties are notified
- Payment remains in escrow (neither party receives funds until dispute is resolved)
- Platform messaging remains active for clarification
- MyArteLab support team begins review

---

4. Evidence Required

Strong disputes include clear evidence. **Both parties should provide:**

For Clients:

- **Project brief or booking request** (what was agreed)
- **Messages exchanged** (agreements, revisions requested, communication timeline)
- **Delivered files** (if work was submitted)
- **Screenshots** (if relevant - showing quality issues, missing elements, etc.)
- **Original agreement** (pricing, timeline, deliverables)

For Creators:

- **Work delivered** (files, proofs, drafts showing progress)
- **Messages exchanged** (showing communication, agreements, client approvals)
- **Project brief** (what was requested vs what was delivered)

- **Timeline documentation** (showing work was delivered on time or delays were client-caused)
- **Revision history** (showing changes requested and completed)

Evidence is reviewed objectively. Quality of evidence matters more than quantity.

---

5. Review Process

Step 1: Parties Attempt Resolution (48 hours)

After dispute is opened:

- Both parties have **48 hours** to attempt resolution directly
- Platform messaging remains active
- Parties can propose solutions (partial payout, additional revisions, revised timeline, etc.)
- If resolution is reached, dispute is closed and agreed outcome is implemented

Step 2: Escalation to MyArteLab Support (3-5 business days)

If parties cannot resolve within 48 hours:

- Dispute is automatically escalated to MyArteLab support team
- Support may request **additional information or evidence** from either party
- Both parties may add clarifying messages or documents
- Support reviews all evidence, messages, and platform policies

Step 3: MyArteLab Decision (5-7 business days)

MyArteLab support team makes final decision based on:

- **Evidence provided** (messages, files, agreements, deliverables)
- **Platform policies** (Terms of Service, Refund Policy, quality standards)
- **Industry standards** (what is reasonable for this type of creative work)
- **Fairness** (balancing rights and obligations of both parties)
- **Timeline** (who caused delays, if any)

Decision timeline: Typically **5-7 business days** from escalation.

Both parties are notified of decision via email and platform notification.

---

6. Possible Outcomes

MyArteLab may decide:

A. Full Payout to Creator

- Work was delivered as agreed
- Client's concerns are not valid or are based on personal preference rather than scope violation
- Creator fulfilled obligations

Result: Funds released to creator (minus MyArteLab's 10% commission)

B. Partial Payout

- Work was partially completed
- Some deliverables met scope, others did not
- Creator delivered but quality fell short in some areas
- Project was cancelled mid-way through legitimate work

Result: Funds split between creator and client based on percentage of work completed (e.g., 60% to creator, 40% refund to client)

C. Full Refund to Client

- Work was not delivered
- Work significantly failed to meet agreed scope
- Creator disappeared or stopped responding
- Deliverables were unusable or fraudulent

Result: Full refund to client, no payment to creator

D. Project Cancellation with Fee Split

- Both parties contributed to dispute
- Unclear fault or miscommunication on both sides
- Project cannot proceed due to unforeseen circumstances

Result: Cancellation fees split (e.g., 50/50), or based on fault determination

E. Additional Revisions Required

- Work is close to scope but needs minor adjustments
- Creator agrees to complete revisions
- Timeline extended for completion

Result: Funds remain in escrow, creator completes revisions, client approves, funds released

---

7. Decision Communication

Both parties receive:

- **Email notification** with decision and reasoning
- **Platform notification** in dashboard
- **Detailed explanation** of why decision was made
- **Next steps** (if any - e.g., creator must deliver revisions, client must approve, funds will be released/refunded)

Transparency: MyArteLab explains decisions clearly so both parties understand reasoning.

---

8. Appeals

Users may appeal decisions if:

- New evidence is available that was not considered
- Significant error was made in decision
- Policy was misapplied

How to Appeal:

1. Contact **contact@myartelab.com** within **14 days** of decision
2. Subject line: **"Dispute Appeal - [Booking ID]"**
3. Provide **new evidence** or **clear explanation** of error
4. Appeals team reviews within **5-7 business days**

Appeal outcomes:

- **Decision upheld** (no changes)
- **Decision revised** (new outcome based on new evidence)
- **Case reopened** for further review (rare)

Final decision after appeal is binding.

---

9. Consequences of Disputes

For Creators:

- **Resolved in creator's favor:** No negative impact (may actually boost credibility if client was at fault)
- **Resolved in client's favor:** May affect visibility score, ratings, and profile standing
- **Multiple disputes resolved against creator:** May result in account review, suspension, or termination

For Clients:

- **Resolved in client's favor:** No negative impact
- **Resolved in creator's favor:** May affect client reputation (creators can see client history)
- **Multiple disputes opened frivolously:** May result in account restrictions or termination

Abuse of Dispute System:

- Opening disputes in bad faith (to delay payment, harass users, extract free work)
- Providing false evidence or misleading information
- Refusing reasonable resolutions

Result: Account suspension or termination, potential legal action

---

10. Dispute Prevention Best Practices

To avoid disputes:

For Creators:

- **Communicate clearly** (confirm scope, timeline, deliverables before starting)
- **Provide updates** (share work-in-progress, check in with client)
- **Document agreements** (screenshot important messages, save project briefs)
- **Deliver on time** (or communicate delays early)
- **Be responsive** (reply to client messages within 24-48 hours)

For Clients:

- **Provide clear briefs** (explain exactly what you need, provide examples/references)
- **Set realistic timelines** (rush projects often lead to disputes)
- **Communicate changes early** (don't wait until delivery to mention scope changes)
- **Be responsive** (approve/reject deliveries promptly, provide clear feedback)
- **Respect scope** (don't ask for unlimited revisions beyond agreement)

---

11. Arbitration and Legal Action

By using MyArteLab, users agree that:

- **Disputes will first be resolved through MyArteLab's dispute resolution process**
- **MyArteLab's decision is final within the platform**
- **Users waive the right to sue MyArteLab** for dispute outcomes (disputes are between creator and client)
- **Legal action between users** (creator suing client or vice versa) is permitted but strongly discouraged - platform dispute resolution is faster, cheaper, and more effective

If legal action is pursued:

- MyArteLab may provide requested information to courts (messages, evidence, transaction records)
- Platform decision stands unless overturned by court
- Users are responsible for their own legal costs

Arbitration: For disputes involving MyArteLab itself (not creator vs client disputes), binding arbitration may be required (see Terms of Service).

---

12. Contact

For questions about dispute resolution:

Email: contact@myartelab.com

Subject Line: Dispute Resolution Inquiry

<a name="cookie-policy"></a>

6. COOKIE POLICY

Cookie Policy

Last Updated: April 2026

Contact: contact@myartelab.com

This policy explains how MyArteLab uses cookies and similar technologies to improve your browsing experience, provide essential platform functionality, and analyze usage patterns.

---

1. What Are Cookies?

Cookies are small text files stored on your device (computer, phone, tablet) by your web browser when you visit a website.

Cookies help websites:

- Remember your login session
- Save your preferences
- Improve performance
- Understand how users interact with the site
- Provide security protections

Cookies do not:

- Access files on your device
- Contain viruses or malware
- Identify you personally (in most cases)

---

2. How We Use Cookies

MyArteLab uses cookies for the following purposes:

A. Essential Cookies (Required)

These cookies are **necessary for the platform to function** and cannot be disabled.

Examples:

Cookie Name	Purpose	Duration

`session_id`	Keeps you logged in	Session (deleted when you close browser)
`csrf_token`	Protects against security attacks	Session
`auth_token`	Authenticates your account	30 days (or until logout)

Without these cookies, you cannot:

- Log in to your account
- Access your dashboard
- Create or manage bookings
- Use secure features

B. Performance Cookies (Recommended)

These cookies help us understand how users interact with MyArteLab so we can improve features and performance.

Examples:

Cookie Name	Purpose	Duration
`_ga`	Google Analytics - tracks overall site usage	2 years
`_gid`	Google Analytics - session tracking	24 hours
`_gat`	Google Analytics - request rate throttling	1 minute

These cookies collect:

- Pages visited
- Time spent on site
- Buttons clicked
- Error messages encountered
- Device type and browser

Data is anonymized and used only to improve the platform.

C. Preference Cookies (Optional)

These cookies remember your settings and preferences.

Examples:

Cookie Name	Purpose	Duration
`theme`	Saves your light/dark mode preference	1 year
`language`	Saves your selected language	1 year
`sidebar_collapsed`	Remembers if you collapsed the navigation sidebar	1 year

These cookies improve your experience by remembering how you like to use the platform.

D. Security Cookies (Required)

These cookies help detect suspicious activity and protect your account.

Examples:

Cookie Name	Purpose	Duration
`device_fingerprint`	Detects unusual login locations or devices	90 days
`rate_limit`	Prevents automated attacks	1 hour

These cookies protect:

- Your account from unauthorized access
- The platform from bots and malicious activity
- User data from breaches

---

3. Third-Party Cookies

Some features on MyArteLab use services from trusted third-party providers. These services may set their own cookies.

Third-party services we use:

Service	Purpose	Privacy Policy

Google Analytics	Usage analytics and performance monitoring	policies.google.com/privacy
Payment Partners (HostCap, Harbor, etc.)	Payment processing and KYC verification	See individual provider policies
Cloud Services (AWS, Cloudflare)	Hosting, security, and performance	See individual provider policies
Email Services (SendGrid, AWS SES)	Transactional email delivery	See individual provider policies

We do not control third-party cookies. These providers follow their own privacy policies.

We do not sell or share personal data with third parties for advertising purposes.

---

4. Managing Cookies

You have control over which cookies you accept.

A. Cookie Consent Banner

When you first visit MyArteLab, you'll see a **cookie consent banner** with options to:

- **Accept all cookies** (essential, performance, preference, security)
- **Accept only essential cookies** (required for platform to function)
- **Customize preferences** (choose which cookie categories to allow)

Your choice is saved and you can change it anytime in **Settings** → **Privacy** → **Cookie Preferences**.

B. Browser Settings

You can also manage cookies through your browser settings:

Google Chrome: Settings → Privacy and Security → Cookies and other site data

Firefox: Settings → Privacy & Security → Cookies and Site Data

Safari: Preferences → Privacy → Manage Website Data

Microsoft Edge: Settings → Privacy, search, and services → Cookies and site permissions

Options include:

- Block all cookies (may break platform functionality)
- Block third-party cookies only (allows MyArteLab cookies but blocks analytics)
- Delete existing cookies
- Receive alerts before cookies are stored

C. Opt-Out Tools

You can opt out of specific third-party tracking:

- **Google Analytics opt-out:** tools.google.com/dlpage/gaoptout
- **Do Not Track (DNT):** Enable in browser settings (note: not all services honor DNT)

---

5. Impact of Blocking Cookies

If you block essential cookies:

- ❌ You cannot log in
- ❌ Platform will not function
- ❌ Bookings, payments, and messaging will not work

If you block performance/preference cookies:

- ✅ Platform still functions
- ⚠️ We cannot improve features based on usage data
- ⚠️ Your preferences (theme, language) are not saved
- ⚠️ You may see repeated cookie banners

Recommendation: Accept all cookies for the best experience. If privacy is a concern, block only third-party cookies and keep essential cookies enabled.

---

6. Cookies and Privacy

MyArteLab is committed to protecting your privacy.

- Cookies do not contain personal information (like passwords or payment details)
- We do not sell cookie data to advertisers
- Analytics data is anonymized and used only to improve the platform
- We comply with GDPR, CCPA, and other privacy regulations

For more information on how we handle data, see our **Privacy Policy**.

---

7. Updates to This Policy

We may update this Cookie Policy as:

- New features are added
- Third-party services change
- Privacy regulations evolve

Updates will be posted here with a new "Last Updated" date.

Significant changes will be communicated via email or platform notification.

---

8. Contact

For questions about cookies or privacy:

Email: contact@myartelab.com

Subject Line: Cookie Policy Inquiry

<a name="implementation-instructions"></a>

IMPLEMENTATION INSTRUCTIONS FOR JAPHET

WHERE TO ADD THESE POLICIES ON THE PLATFORM:

---

1. FOOTER (ALL PAGES)

Add links to all 6 policies in the footer. They should appear on every page.

Footer structure:

About | How It Works | Help | Terms of Service | Privacy Policy | Cookie Policy | Contact

Each link opens the policy in:

- New page (preferred), OR
- Modal/overlay window

---

2. SIGNUP FLOW - REQUIRED CHECKBOXES

On the signup page, add checkboxes BEFORE the "Create Account" button:

html
☐ I agree to the Terms of Service
☐ I agree to the Privacy Policy

Requirements:

- Both checkboxes must be checked before user can create account
- "Terms of Service" and "Privacy Policy" are clickable links (open in new tab or modal)
- Add validation: if user clicks "Create Account" without checking boxes, show error: "Please agree to the Terms of Service and Privacy Policy to continue"

---

3. CREATOR VERIFICATION - KYC ACKNOWLEDGMENT

When creators upload ID for verification, add checkbox:

☐ I confirm the information I've provided is accurate and I agree to the AML/KYC Policy

Requirements:

- Must be checked before verification is submitted
- "AML/KYC Policy" is a clickable link

4. FIRST WITHDRAWAL - ACKNOWLEDGMENT

When creator withdraws funds for the first time, add checkbox:

☐ I understand withdrawal fees (1-3%) may apply depending on my location
☐ I confirm I am the rightful owner of these funds
```

**Requirements:**
- Must be checked before withdrawal is processed

---

### **5. BOOKING FLOW - REFUND POLICY**

**Before client pays, add text (no checkbox needed, just visible):**
```
By proceeding with payment, you agree to our Refund & Cancellation Policy.
```

**"Refund & Cancellation Policy" is a clickable link**

---

### **6. SETTINGS PAGE**

**Add a section called "Legal & Privacy" with links to:**

- Terms of Service
- Privacy Policy
- AML/KYC Policy
- Refund & Cancellation Policy
- Dispute Resolution Policy
- Cookie Policy

**Also add:**
- "Download My Data" button (GDPR compliance)
- "Delete My Account" button (GDPR compliance)

---

### **7. HELP CENTER / FAQ**

**Create a section called "Policies & Legal"** with all 6 policies listed.
```

Each policy should have:
- A brief 2-3 sentence summary
- "Read Full Policy" link

---

8. COOKIE CONSENT BANNER

On first visit to the site, show a cookie banner at the bottom:
```
We use cookies to improve your experience. [Learn More]
[Accept All Cookies] [Essential Cookies Only]
```

Requirements:
- Banner appears on first visit only
- User choice is saved in browser localStorage
- "Learn More" links to Cookie Policy
- "Accept All Cookies" = all cookie categories enabled
- "Essential Cookies Only" = only required cookies enabled
- Banner disappears after user makes choice

Advanced (optional for MVP):
- Add "Customize" button that opens modal with cookie category toggles

---

FILE STRUCTURE:

Create these pages/routes:
```
/legal/terms-of-service
/legal/privacy-policy
/legal/aml-kyc-policy
/legal/refund-cancellation-policy
/legal/dispute-resolution-policy
/legal/cookie-policy
```

OR create a single page:
```
```

/legal

With navigation sidebar showing all 6 policies.

SUMMARY CHECKLIST:

Before launch, make sure:

- All 6 policies are added to the platform
- Footer links work on every page
- Signup checkboxes are required (Terms + Privacy)
- KYC verification checkbox is required (AML/KYC Policy)
- First withdrawal checkboxes are required
- Refund policy is visible in booking flow
- Settings page has "Legal & Privacy" section
- Help Center has "Policies & Legal" section
- Cookie banner shows on first visit
- All policy links open correctly
- Policies are readable on mobile